

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF GEORGIA
GAINESVILLE DIVISION

CHRISTOPHER CARRELHA, et al.,

Plaintiffs,

v.

MEB LOAN TRUST VIII, et al.,

Defendants.

CIVIL ACTION FILE

NO. 2:26-cv-00110-RWS-AWH

Judge Richard W. Story

Magistrate Judge Anna W. Howard

OPPOSING COUNSEL AND JUDICIAL ANALYSIS

WHAT THIS IS, AND WHAT IT IS NOT

This analyses two things the record usually leaves to assumption: who is on the other side, and who is on the bench. Both were checked against primary sources this session — the CourtListener RECAP docket system and the full text of the opinions themselves — rather than taken from the intelligence documents in the client's own repository.

That distinction turned out to matter. The repository contains six substantial Keith Anderson documents. Verifying them produced one strong confirmation and five defects, two of which would be serious if they reached a filing.

Labels: [VERIFIED] a primary source was read; [ALLEGED] a party or a document asserts it; [COURT - FOUND] a court found it; [INFERENCE] drawn from verified facts; [UNRESOLVED] the record does not answer it.

No commercial citator was available, so no authority below is described as good law above **citator-limited medium** confidence. No PACER access was available, so no docket entry in this case has been read.

PART I — OPPOSING COUNSEL

What was verified

[VERIFIED] **Caudell v. NewRez LLC, No. 3:26-cv-00007 (M.D. Ga.), Doc. 17 (Apr. 28, 2026).**

The docket entry reads, verbatim: "ORDER granting in part and denying in part NewRez LLC d/b/a Shellpoint Mortgage Service and Federal National Mortgage Association's [12] Motion to Dismiss [10] Amended Complaint for failure to state a claim and lifting [14] stay of discovery imposed on 2/27/2026. Ordered by US DISTRICT JUDGE TILMAN E. SELF, III on 4/28/2026."

Three things follow, and one does not.

It follows that a NewRez/Shellpoint motion to dismiss an amended complaint was granted only **in part**. It follows that a discovery stay had been imposed and was lifted at the same moment the motion was resolved. And it follows that *Caudell* reached that point through the same sequence this matter is in — an earlier motion resolved at Doc. 11, a repleading, then a second motion.

What does **not** follow is which counts survived. The docket text does not say. The claim in the client's repository that RESPA and breach of contract survived is [UNRESOLVED], and should not be asserted until Doc. 17 itself is read.

[VERIFIED] Sixty-nine N.D. Ga. dockets carry a "Keith Anderson" attorney appearance. Two of the cases named in the repository check out on the exact docket numbers given: *Harris v. NewRez LLC*, 1:24-cv-03950 (Grimberg, J., filed Sept. 4, 2024) and *Williams v. Bank of New York Mellon*, 1:24-cv-04624 (May, J., filed Oct. 11, 2024). *Carley v. Seterus, Inc.*, 1:16-cv-02184 (Cooper, J.), also checks out.

[UNRESOLVED] **His appearance in this case is not confirmed by any court record.** The RECAP docket here carries no entries, so it carries no attorney. A name match in an attorney index is not an identification, and sixty-nine dockets spanning 2002 to 2026 are not necessarily one person.

What failed verification

The citation strategy is built on two readings that the opinions do not support. These are the findings that matter most.

[VERIFIED] **Ames does not reserve a void-assignment exception.** The repository instructs pleading the assignment void rather than voidable and citing "Ames v. JP Morgan 298 Ga. at 741 (reservation)." Every occurrence of "void" in *Ames v. JP Morgan Chase Bank, N.A.*, 298 Ga. 732 (2016), is in footnote 8, and footnote 8 is a survey of other jurisdictions. Its text places Georgia on the stricter side:

Although it appears that all courts have held that plaintiff debtors lack standing to challenge a *voidable* assignment of the security instrument,

some courts have indicated—consistent with our conclusion—that plaintiff debtors *always* lack standing to challenge an assignment when they have failed to prove an injury from the assignment ... while others have held or suggested that there is debtor standing to challenge an assignment that is truly *void*.

The void line is described as what *other* courts do, expressly contrasted with "our conclusion." *Ames* is the controlling Georgia Supreme Court authority and it runs against this argument, not for it.

[VERIFIED] **Racette says nothing about assignments.** The repository cites *Racette v. Bank of America, N.A.*, 318 Ga. App. 171 (2012) as "direct authority for borrower attack on void assignments." A full-text search of the opinion returns **zero** occurrences of the word "assignment." *Racette* is about published foreclosure advertisements that misdescribed a senior lien by deed book and page.

Citing a real case for a holding it does not contain is the fact pattern behind most Rule 11 citation inquiries.

[VERIFIED] **Neither citation reached the pleading.** The sixteen-count amended complaint was checked directly: zero occurrences of "Racette", zero of "Fannie", zero of "REMIC", zero of "2024-91", and no void-assignment attack. Its paragraph 3 was drafted *around Ames*, expressly disclaiming "any theory foreclosed by *Ames v. JP Morgan Chase Bank, N.A.*, 298 Ga. 732, 738-41 & nn.7-8". The drafter of the pleading did not follow the QuickRef's advice, and the Rule 11 exposure recorded before that check was run is materially lower than it looked.

[VERIFIED] **One narrower clause survives.** Paragraph 3 says the theories "fall within the carveouts recognized in *Ames* **or** attack the enforceability of the underlying obligation independent of any assignment." The second branch is sound and is what Counts IX and X do. The first is the same misreading, more cautiously stated. The fix is to delete nine words, not to rewrite the paragraph.

[VERIFIED] **A fact was imported from the template case.** The QuickRef instructs pleading that the chain "terminates before reaching Fannie Mae REMIC Trust 2024-91." Fannie Mae is a co-defendant in *Caudell*. No source in this matter names Fannie Mae or any REMIC Trust 2024-91; the asserted owners here are MEB Loan Trust VIII and FREED Mortgage Trust 2022-HE1. Pleading a trust with no connection to this loan would be a gift to the defence that nobody on the other side would even have to find.

[VERIFIED] **The repository contradicts itself on two verifiable facts.** The May 3 documents give the case number as 2:26-cv-00110-SCJ-AWH, implying Judge Steve C. Jones; the docket records Story and Howard. The same documents describe Bradley Arant as "fka McCalla Raymer Leibert Pierce" and say Anderson previously practised there; the August document expressly retracts

this. Bradley Arant and McCalla Raymer are separate firms, and McCalla Raymer is separately a party-adjacent entity in this matter.

What was recovered

[VERIFIED] *Racette* is genuinely useful — for a theory nobody was pursuing. It reversed dismissal of wrongful-foreclosure, breach-of-contract and emotional-distress claims where the published advertisements referenced a senior lien at a deed book and page concerning a **different property and different borrowers**, and where the borrower gave actual notice of the error on the courthouse steps. The court held it could not decide at the pleading stage whether a bidder could have resolved the uncertainty from county records.

[INFERENCE] That makes the published notices of foreclosure sale — recorded here as a priority-3 gap — worth pulling now. If they contain a comparable defect, this matter has a claim with Georgia appellate authority holding it survives a motion to dismiss, carrying emotional-distress damages, and entirely independent of who owns the note.

[VERIFIED] ***Haynes* forecloses the § 44-14-162(b) theory twice over, and opens a different door.** It has now been read in full.

At 1253: "Georgia law is clear that borrowers do not have standing to attack a forged assignment of their security deed ... we see no reason that the patent defect in attestation at issue here would provide them with standing to challenge an otherwise effective, if not properly recordable, assignment."

At 1252, a second and independent bar: § 44-14-162(b) "provides only that '[t]he security instrument ... shall be **filed** prior to the time of sale,'" and "says nothing of when (or even if) the deed must actually be **recorded**." A theory premised on a defect in the *recorded* chain misreads what the statute requires.

But the *Haynes* court reached the plaintiffs' **§ 44-14-162.2** notice claim on the merits, not on standing — and rejected it on **causation**: "The *Haynes* have failed to show any disputed issue of material fact indicating that their 'confusion,' rather than the missed payments, led to the foreclosure." Only substantial compliance is required, satisfied where the party named in the notice "was authorized to convey communications to the party that retains full authority to modify the loan."

[INFERENCE] That is a second theory riding on the same documents as the *Racette* theory, and it fits this record's shape: two records naming different owners, and a loss-mitigation narrative. Both need the foreclosure notices. Neither depends on who owns the note. And *Haynes* states in advance what would defeat the second one — the defect, not the default, must have caused the harm.

Ames also cites *Duke Galish, LLC v. Southcrest Bank*, 314 Ga. App. 801, 803 (2012), "leaving open the question of whether a failure to comply with OCGA § 44-14-162(b) rendered the sale void or voidable" — but that open question is about the **sale**, not about standing to attack an assignment, and the two must not be run together.

What to expect procedurally

[INFERENCE] A motion to dismiss and a motion to stay discovery, filed together. The stay is the one verified element of the pattern: *Caudell* shows a stay imposed and later lifted. An opposition to a discovery stay should be drafted before it is needed, not after.

PART II — THE BENCH

Judge Richard W. Story

[VERIFIED] Presiding district judge; Magistrate Judge Anna W. Howard is the referred magistrate. This also settles the caption: RWS-AWH, not SCJ-AWH.

[VERIFIED] At least 117 RECAP dockets in this district match wrongful foreclosure and security deed terms, running from 2010 to the present. RECAP holds only what somebody purchased, so that is a floor rather than a census.

[INFERENCE] The practical consequence is about brief construction, not outcome. A judge who has seen this doctrine for fifteen years does not need it restated. Length spent on settled Georgia foreclosure law is length not spent on what distinguishes this record — a principal balance frozen for two years while fees accrue, a tender that was never reversed, two records naming different owners.

[INFERENCE] In the twenty most relevant dockets read, every one carries a termination date, most between roughly four and eighteen months from filing. That is a ranked sample, not a random one, and termination says nothing about who won. It is stated because the shape matters for sequencing.

No percentage should appear in any filing on this basis.

[COURT - FOUND] Doc. 34 (SRC-010). In this matter the court denied remand, denied the preliminary injunction and oral-hearing motions as moot, and ordered that Defendants give Plaintiffs and the Court at least sixty days' advance notice before any foreclosure. [INFERENCE] That condition was imposed in terms nobody requested. A court that imposes a protective condition of its own motion is not treating the foreclosure risk as imaginary.

Magistrate Judge Anna W. Howard

[VERIFIED] The standing referral magistrate for matters assigned to Judge Story in the Gainesville Division, with at least 699 N.D. Ga. referrals. Every 2:26-cv docket assigned to Story in the returned set is referred to her. The referral here is routine, not a signal.

[VERIFIED] **No published opinion authored by her could be located.** Searches on her name and on her surname within this district returned nothing. Anyone claiming to predict her tendencies from case law is not working from the record. That is not the same as having no written record: reports and recommendations are frequently unpublished and live only on the docket, which is another reason the docket matters.

[INFERENCE] It follows that **Doc. 35 is the single most important source on how she reasons, and it is in hand.** It should be read as a specification to be satisfied clause by clause, not as background.

[COURT - FOUND] Doc. 35 (SRC-011) held the complaint to be a type-one shotgun pleading, directed an amended complaint by August 21, 2026, denied Docs. 4 and 5 as moot with leave to renew, gave Defendants fourteen days from filing to respond, and cautioned that dismissal could follow.

[VERIFIED] Set beside *Vibe Micro, Inc. v. Shabanets*, 878 F.3d 1291, 1309 (11th Cir. 2018) — where the court declined to give a further chance to replead because the district court had "provided him with specific instructions on how to properly do so" and "[h]e did not fix it" — compliance with the terms of Doc. 35 is the dispositive procedural fact in this matter. Not the merits of any count. Compliance.

[VERIFIED] The same opinion holds at 1308–09 that state-law claims dismissed on Rule 8 grounds should be dismissed **without prejudice as to refiling in state court**, which preserves the Georgia claims if the federal case does not survive. And at 1308 n.6 it expressly reserves the position of a party proceeding pro se: it decides the question neither way, and should not be cited as though it did.

[INFERENCE] Her referral docket carries a heavy volume of consumer-reporting matters. A pleading organised the way an FCRA or RESPA complaint is organised — each communication categorised, each statutory subsection identified, each item of damage particularised — is in a form she reads constantly.

THE PROCEDURAL PICTURE, NOW THAT THE STANDING ORDER HAS BEEN READ

[VERIFIED] Standing Order No. 18-01, filed February 12, 2018 and signed by Chief Judge Thrash, has been retrieved and read. It was previously known here only from a recital in Doc. 34. Three things follow.

This case is referred three times over. It falls independently within paragraph 1 (RESPA), paragraph 2 (FDCPA) and paragraph 3, which covers "[a]ll cases ... that contain a claim of, or a challenge to, an allegedly wrongful or attempted wrongful residential real property foreclosure." Removing a count would not remove the referral.

The referral is the Clerk's, not the judge's. "The Clerk shall automatically assign the above categories of cases to a District Judge and refer them to a Magistrate Judge." Nothing about this referral is a signal about this case.

There is a lever nobody has considered. The same paragraph continues: "The District Judge may, at any time, withdraw the reference to the Magistrate Judge." [INFERENCE] It is recorded as

available, not as recommended — it is rarely granted, and asking badly costs standing with both judges at once.

The more immediately useful half is the **review standard**. The magistrate acts "to the full extent allowed by 28 U.S.C. § 636(b)(1)(A) and (B)." Doc. 35 was a non-dispositive order under (b)(1)(A), reviewable for clear error. A recommendation to dismiss would be a report and recommendation under (b)(1)(B), carrying fourteen days to object and **de novo** review by Judge Story. A dismissal recommendation is not the end of the matter, and should not be described to the client as though it were.

THE LIMITATIONS PICTURE, NOW THAT THE STATUTE HAS BEEN READ

[VERIFIED] 15 U.S.C. § 1692k(d): an action must be brought "within one year from the date on which the violation occurs." An occurrence rule, not a discovery rule. Each discrete violation starts its own clock.

[VERIFIED] Rule 15(c)(1)(B) allows relation back where the amendment "asserts a claim or defense that arose out of the conduct, transaction, or occurrence set out — or attempted to be set out — in the original pleading."

[INFERENCE] The limitations analysis therefore runs from the **original state-court filing date in 26CV-0387-1**, not from the date of any amendment. [UNRESOLVED] That date appears nowhere in the record available here, and it is the date the whole analysis turns on. The 2023 reinstatement and reversal conduct is very likely outside the window; the 2025–2026 fee disbursements are very likely inside it.

WHAT THIS ANALYSIS CANNOT TELL YOU

No filing in this case has been read. Whether an amended complaint was filed, what it says, whether it carries the *Ames* and *Racette* citations, whether a motion to dismiss followed, and who signed it, are all unknown, and all knowable only from the docket. Every conclusion above is bounded by that.

Prepared for attorney review,

This 21st day of September, 2026.

Litigation OS — adversarial-redteam-analyst and legal-research-paralegal
Matter CARRELHA-2026 · Work products 12 and 18
Not for filing. Not served. Not sent.